CONSEIL DE L'EUROPE

COUNCIL OF EUROPE

COUR EUROPÉENNE DES DROITS DE L'HOMME
EUROPEAN COURT OF HUMAN RIGHTS

SECOND SECTION

PARTIAL DECISION

AS TO THE ADMISSIBILITY OF

Application no. 70518/01
by Uno PIIPPO
against Sweden

The European Court of Human Rights (Second Section), sitting on 7 December 2004 as a Chamber composed of:

Mr J.-P. COSTA, *President*,
Mr A.B. BAKA,
Mr R. TÜRMEN,
Mr K. JUNGWIERT,
Mr M. UGREKHELIDZE,
Mrs A. MULARONI,
Mrs E. FURA-SANDSTRÖM, *judges*,
and Mrs S. DOLLÉ, *Section Registrar*,

Having regard to the above application lodged on 16 March 2001,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr Uno Piippo, is a Swedish national, who was born in 1941 and lives in Karungi.

A. The circumstances of the case

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is the owner of agricultural property, Karungi 7:12 and Karungi 54:1, covering approximately 542 hectares, which is part of a 19,200 hectares joint hunting area (*jaktvårdsområde*), as set out in the Act on Joint Hunting Areas (*Lagen om jaktvårds-områden, 1980:894).* The applicant is also member of the Karungi Joint Hunting Area Association (*Karungi jaktvårdsområdesförening*) which administers the area. The applicant can hunt within the joint area, including his own property, but is obliged to co-ordinate the hunting with the other hunting rights holders**.**

On 16 March 1997 the applicant requested that his property be excluded from the joint hunting area, pursuant to Section 29 of the Act on Joint Hunting Areas. In support thereof, he argued that recently elks had caused a lot of damage to his property and that the hunting association had shown little interest in hunting there. Moreover, he submitted that, due to lack of time, he did not benefit fully from hunting in the remainder of the joint hunting area.

The Karungi Joint Hunting Area Association opposed the exclusion and on 13 August 1997 the County Administrative Board (*Länsstyrelsen in Norrbottens Län*) refused the applicant's request.

The applicant appealed against the decision to the County Administrative Court *(Länsrätten i Norrbottens Län*), before which he submitted that there had been a change of use of his property, in that the area under cultivation had increased from 30 hectares to 65 hectares and the number of elks had increased from 50 to 90. In its judgment of 2 October 1997, the County Administrative Court dismissed the argument that there had been a change of use of the property within the meaning of Section 29 of the Act on Joint Hunting Areas. However, when balancing the interest of the public against the interest of the applicant, it found for the latter.

The Karungi Joint Hunting Area Association appealed against the judgment to the Administrative Court of Appeal *(Kammarrätten i Sundvall)* and maintained that the applicant's property had importance for game preservation within the joint hunting area. Thus, its exclusion from the joint hunting area would result in an increase in the stock of elks, which would be to the detriment of both game preservation and hunting.

By judgment of 6 July 1999 the Administrative Court of Appeal, having balanced the interest of the public against the interest of the individual,

found against the applicant. In reaching this decision it considered that the control of the applicant's property was proportionate to the aim pursued in the general interest of maintaining the suitable game preservation of, *inter alia,* elks. Accordingly, the interference could not be considered to be contrary to Article 1 of Protocol No. 1 to the Convention as invoked by the applicant.

Leave to appeal to the Supreme Administrative Court (*Regeringsrätten*) was refused on 5 October 2000.

B. Relevant domestic law and practice

The Act on Joint Hunting Areas (1980:894)

The Act on Joint Hunting Areas provides, as a general rule, that for the purpose of promoting the preservation of game and the hunting right holders' common interests through the co-ordination of game preservation, two or more properties or pieces of properties may be joined to one joint hunting area and that, where this is done, the hunting right holders within this area will form an association to administer the joint hunting area (Section 1).

According to Section 3, a person whose land is incorporated in a joint hunting area is a member of the joint hunting area association.

The County Administrative Board decides on the establishment of a joint hunting area upon an application from one of the property owners concerned. For such an area to be formed, at least two thirds of the owners, representing at least half of the total area, must agree (Section 7). Moreover, the area has to be suitable with regard to, *inter alia,* the stock of game (Section 8). The Board also confirms the by-laws of the association with regard to certain aspects (Section 4). One of those aspects is the extent to which joint hunting is to take place within the area (Section 21).

The County Administrative Board may decide to dissolve a joint hunting area association under certain conditions (Section 26).

A specific property may be excluded from the joint hunting area if, as a result of a change in its use or for other reasons, it has lost its importance for game preservation. The association itself may decide to exclude the property if it agrees with the property owner. Otherwise, the County Administrative Board decides the issue (Section 29).

Decisions made by the general meeting or the board of the association may be appealed against to the County Administrative Board by a member of the association affected by the decision (Section 33).

An appeal against the decisions of the County Administrative Board may be lodged with the Administrative Court of Appeal (Section 34). Upon the grant of leave to appeal, the decisions of the latter may be appealed against to the Supreme Administrative Court.

COMPLAINTS

The applicant complains, without invoking any specific Articles of the Convention, that his property rights and his right not to be a member of an association have been violated.

THE LAW

The Court finds that the applicant's complaints must be examined under respectively Article 1 of Protocol No. 1 to the Convention and Article 11 of the Convention, which read, insofar as relevant, as follows:

Article 1 of Protocol No. 1 to the Convention

> "Every natural or legal person is entitled to the peaceful enjoyment of his possessions. No one shall be deprived of his possessions except in the public interest and subject to the conditions provided for by law and by the general principles of international law.
>
> The preceding provisions shall not, however, in any way impair the right of a State to enforce such laws as it deems necessary to control the use of property in accordance with the general interest ..."

Article 11 of the Convention

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others, ...
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of ... public safety ... or for the protection of the rights and freedoms of others. ..."

1. The Court considers that it cannot, on the basis of the case file, determine the admissibility of the complaint under Article 1 of Protocol No. 1 and that it is therefore necessary, in accordance with Rules 54 § 2 (b) of the Rules of Court, to give notice of this part of the application to the respondent Government.

2. As regards the complaint under Article 11 of the Convention, the Court recalls that under the notion of Article 35 § 1 of the Convention, it may only deal with a matter after all domestic remedies have been exhausted, according to the generally recognised rules of international law. This condition is not met by the mere fact that an applicant has submitted his or her case to the various competent courts. It is also necessary for the complaint brought before the Court to have been raised by the applicant, at least in substance, during the proceedings in question. In the present case the applicant did not submit before the domestic courts that he objected to

being a member of the Karungi Joint Hunting Area Association, nor did he invoke Article 11 of the Convention.

It follows that this part of the application is inadmissible for non-exhaustion of domestic remedies within the meaning of Article 35 § 1 of the Convention and must be rejected pursuant to Article 35 § 4.

For these reasons, the Court unanimously

Decides to adjourn the examination of the applicant's complaint under Article 1 of Protocol No. 1 concerning property rights;

Declares the reminder of the application inadmissible.

S. DOLLÉ
Registrar

J. -P. COSTA
President